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Case Number: 24BBCV00101 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Augment Expert Witness Designation

Hearing Date: 07/10/26

CASE NO./NAME: 24BBCV00101/Verj Sarkissian v.

Charles Alson, et. al.

Moving Party: Defendants

Charles Alson and Michaelyn Alson

Responding Party: Plaintiff Vrej Sarkissian

Notice: Sufficient

Ruling: DENY

NOTICE:

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Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a premises liability case. On January 22, 2022, Plaintiff Vrej Sarkissian (“Plaintiff”) alleges that Plaintiff was injured by Defendants’ Charlson and Michaelyn Alson (“Defendants”) property. (Compl., Prem. L-1.) Defendants’ palm fronds allegedly fell off the tree and struck Plaintiff and knocked him to the ground when Plaintiff was in the front of his home. (Ibid.)

On January 12, 2024, Plaintiff filed his Complaint alleging three causes of action for (1) premises liability; (2) general negligence; and (3) nuisance. (See Compl.)

On May 11, 2026, Defendants served a Designation of Expert Witnesses, designating a single retained expert, Michael P. Weinstein, M.D. (Macdonald Decl., ¶ 8, Exhibit B.)

On June 10, 2026, Defendants filed this Motion to Augment Expert Witness Designation (“Motion”).

On June 26, 2026, Plaintiff filed an opposition.

On July 2, 2026, Defendants filed a reply.

LEGAL

STANDARD

On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to augment that party’s expert witness list and declaration by adding the name and address of any expert witness whom that party has subsequently retained. (Civ. Proc. Code, § 2034.610, subd. (a)(1).)

The court shall grant leave to augment or amend an expert witness list or

declaration only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined either of the following:

(1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.

(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(d) Leave to augment or amend is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

(Civ. Proc. Code,
§ 2034.620.)

DISCUSSION

Defendants argue

they should be permitted to augment the expert witness designation to include a second retained expert because Defendants have satisfied section 2034.620. Defendants argue that Defendants timely filed their initial Designation of Experts on May 11, 2026. Defendants argue that Plaintiff did not rely to his prejudice on the initial designation because no depositions were scheduled or taken to date and an Amended Designation was served the next day on May 12, 2026, identifying the additional expert, Michael V. Sanders, MAI, SRA ("Sanders"). Additionally, Defendants would not, in the exercise of reasonable diligence, have determined to call Sanders or to offer additional testimony of that expert witness because Plaintiff did not identify any damage to the real property in form interrogatories or in his deposition. Defendants only raised the issue of damage to real property with the designation of a retained expert in that area on May 11, 2026, and then made the amendment the next day. In the alternative, Defendants request that the Court permit the Amended Designation as a tardy designation under Code of Civil Procedure section 2034.710.

In opposition, Plaintiff argues that Defendants have not made a showing of mistake or excusable neglect. Plaintiff contends that Defendants' declaration is a "wait and see tactic." Plaintiff argues that defense cannot claim he did not anticipate diminution in property value would be at issue when it was plead and argued at mediation. Additionally, Plaintiff argues he has been prejudiced because he is a small firm and counsel timed this relief to run up against a known conflict. Plaintiff contends he would have done a deposition of this expert had the relief been timely sought.

In reply, Defendants contend that Defendants need not make a showing of mistake or excusable neglect, as it is only one of two avenues provided by Code of Civil Procedure section 2043.620. Defendants argue they have established a basis for relief under section 2043.620(c)(1), rather than section 2043.620(c)(2). Additionally, contends that Plaintiff is not prejudiced by the addition of the retained expert at trial. Moreover, the delay claimed by Plaintiff was caused by Plaintiff, not Defendants.

Augmenting the Expert Witness Designation

Here, the Court agrees with Defendants that section 2034.620 clearly states that the Court determines either that (1) the moving party would not in the exercise of reasonable diligence have determined to call the expert witness or (2) the moving party failed to determine to call that witness as a result of mistake, inadvertence, surprise, or excusable neglect. (Civ.

Proc. Code, § 2034.620.) Defendants argue they, in an exercise of reasonable diligence, could not have determined to call the expert witness Saunders. However, Plaintiffs argue that Defendants have not made a showing of mistake or excusable neglect. The Court is unpersuaded by Plaintiff's argument, as it is not required to show mistake or excusable neglect to determine whether Defendants would have determined to call the expert witness in the exercise of reasonable diligence.

However, the Court disagrees that Defendants could not have, in the exercise of reasonable diligence, determined to call this expert witness to provide testimony regarding the value and alleged diminution of value of the property at issue. (Macdonald Decl., ¶ 13.) Defendants contend they did not call this expert because Plaintiff only testified as to damage to his vehicles, not to real property at his deposition on November 5, 2025. (Id. at ¶ 11.) However, the Complaint states:

"At

all times relevant defendants failed to maintain said Palm Tree including trimming palm fronds such that on windy days large fronds would fly from the palm tree and land on Plaintiff Property causing physical damage to Plaintiff's Residence and yard as well as automobiles parked on Plaintiff Property and on at least one occasion falling fronds struck plaintiff causing him personal injuries." (Compl., p. 6, lines 10-13.)

The

Complaint also states that Plaintiff seeks damages: "[f]or the diminished value of plaintiff's real property." (Id. at p. 6, line 25.) Because the Complaint clearly alleges diminished value as to Plaintiff's residence and yard, the Court is not persuaded that Defendants could not have, in the exercise of reasonable diligence, determined the need to call an expert witness regarding diminution in value of real property.

As Defendants have failed to satisfy the requirements of 2034.620, the Court need not address Defendants' additional argument that Plaintiff was not prejudiced. Accordingly, the Motion to Augment the Expert Witness Designation is denied.

Tardy

Designation

Alternatively, Defendants request the Court permit the Amended Designation as a tardy designation under section 2034.710. According to section 2034.710, on motion of any party who has failed to submit expert witness information on the date specified in a demand for that exchange, the court may grant leave to submit that information on a later date. (Civ. Proc. Code, § 2034.710, subd. (a).) The motion shall be made a sufficient time in advance of the time limit for the completion of discovery under Chapter 8 (commencing with Section 2024.010) to permit the deposition of any expert to whom the motion relates to be taken within that time limit, and the motion shall be accompanied by a meet and confer declaration under Section 2016.040. (Id. at § 2034.710, subd. (b)-(c).) To grant leave to submit tardy expert witness information, the following conditions must be satisfied:

- (a) The court has taken into account the extent to which the opposing party has relied on the absence of a list of expert witnesses.
- (b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.
- (c) The court has determined that the moving party did all of the following:
 - (1) Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect.
 - (2) Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect.
 - (3) Promptly thereafter served a copy of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action.
- (d) The order is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to

designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

(Id.
at § 2034.720.)

Here, Defendants have demonstrated that they sought to submit the information promptly after learning of the mistake. Defendants initially served an Expert Witness Designation on May 11, 2026. (Macdonald Decl., ¶ 8.) After Plaintiff served an Expert Witness Designation to testify as to the damages and loss of value of Plaintiff's property, Defendant then served their Amended Designation on Plaintiff on May 12, 2026, only one day after filing their initial Designation of Expert Witnesses. (Macdonald Decl., ¶ 12.)

However, the Court agrees with Plaintiff that Defendants have not presented any showing of mistake, inadvertence, surprise, or excusable neglect. The Complaint clearly stated that Plaintiff seeks damages: "[f]or the diminished value of plaintiff's real property." (Compl., p. 6, line 25.) The facts suggest that once Defendants saw Plaintiff's expert designation, Defendants realized they did not have an expert on the topic and, subsequently, submitted an Amended Designation.

In *Fairfax v. Lords* (2006) 138

Cal.App.4th 1019, the trial court denied the plaintiff's motion in limine to exclude the defendant's designated experts where the defendant delayed his designation of retained expert witnesses until 20 days after the plaintiff had designated his expert. The Court of Appeal reversed and held that the delayed designation violated the statute requiring mutual, simultaneous expert witness exchange. (*Fairfax v. Lords* (2006) 138 Cal.App.4th 1019, 1019.) There, once the defendant saw the plaintiff's expert list, he responded with his own rebuttal list. (Id. at p. 1026.) The effect of the designation was to delay his own list of expert witnesses until he had seen the list put forth by plaintiff. (Ibid.) The Court of Appeal reasoned that this was not a situation in which defendant was somehow surprised by the content of plaintiff's expert designation. (Id. at p. 1027.) The Court of Appeal reasoned the complaint itself is a rich source for determining the claims at issue. (Id. at p. 1026.) Thus, the defendant had every reason to anticipate such a

designation. (Id. at p. 1027.) Because the defendant had no right to simply delay his designation until after the opportunity to view the plaintiff's timely designation, the motion should have been granted. (Ibid.)

Similarly, here, this is not a situation in which Defendants had no reason to anticipate Plaintiff's expert designation on diminution of value. The Complaint clearly seeks diminution of value. That Defendants failed to seek an expert designation on the issue until Defendants saw Plaintiff's expert does not constitute a showing of mistake, inadvertence, surprise, or excusable neglect.

Accordingly, Defendants' request that the Court permit the Amended Designation as a tardy designation under section 2034.710 is denied.

CONCLUSION AND ORDER

Defendants' Charles
Alson and Michaelyn Alson Motion to Augment Expert Witness Designation is denied.

Defendants'
alternative request that the Court
permit the Amended Designation as a tardy designation under section 2034.710 is denied.

Hon. Victor Avila

Judge of the Superior Court